

CLIC Case 0007**Country/Court:** Austria, Supreme Administrative Court**Decision number/date:** 2023/18/0078, 2024-02-29**Crime / Issue:** War Crimes**Abstract prepared by:** Philipp Gartner

The applicant – a Syrian national – applied for international protection in Austria. The Federal Authority for Immigration and Asylum denied his application for asylum but granted him subsidiary protection. An appeal to this decision was rejected by the Federal Administrative Court on the grounds that it found serious suspicion that the applicant may have committed war crimes during his military service in the Syrian Army as this would amount to a ground for exclusion pursuant to Article 1 Section F of the Geneva Refugee Convention.

The Federal Administrative Court's evaluation was essentially based on a statement of the applicant in which he admitted that he was involved in two instances of violence against persons under his custody. However, he claimed to be under duress by the order's of his superiors ("*Befehlsnotstand*"), and that he feared serious repercussions in the case of non-compliance. Instead, he stated that the violence was merely performative to satisfy his superiors.

The applicant's justification was rejected by the Federal Administrative Court. Instead, it found that the applicant committed his actions voluntarily. Additionally, it argued that the order would have been manifestly illegal because torture is outlawed in Syria, and, thereby, the applicant's actions would not be justified. Moreover, it held that the Syrian army as whole does not respect international humanitarian law, and, as a result of this, each servicemen would be per definition a complicit to war crimes.

A further appeal was lodged against this judgement to the Supreme Administrative Court ("the Court"). In its judgement, it found that the Federal Administrative Court had failed to evaluate the concrete circumstances of the alleged violence in regard to the concrete and individual responsibility of the applicant. The Court saw a procedural deficiency in the fact that the Federal Administrative Court had failed to ask the applicant further questions after he made the above mentioned statement. Additionally, the Court held that the mere fact that the applicant served in the Syrian Army did not provide sufficient evidentiary value for personal responsibility for war crimes. Consequently, the Court reversed the first instance judgement and ordered a renewed trial.